CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

PARTIAL DECISION

AS TO THE ADMISSIBILITY OF

Application no. 31777/04
by SZEMÉLY ÉS VAGYONŐRÖK FÜGGETLEN SZAKSZERVEZETI SZÖVETSÉGE AND SÁNDOR CSÁNICS
against Hungary

The European Court of Human Rights (Second Section), sitting on 13 February 2007 as a Chamber composed of:

Mrs F. TULKENS, *President*,
Mr A.B. BAKA,
Mr I. CABRAL BARRETO,
Mr V. ZAGREBELSKY,
Mrs A. MULARONI,
Ms D. JOČIENĖ,
Mr D. POPOVIĆ, *judges*,
and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above application lodged on 8 July 2004,

Having deliberated, decides as follows:

THE FACTS

The first applicant, *Személy és Vagyonőrök Független Szakszervezeti Szövetsége*, is an unregistered trade union. The second applicant, Mr Sándor Csánics, is a Hungarian national, who was born on 20 February 1955 and lives in Érd. He is the president of the trade union. The applicants are represented before the Court by Mr I. Barbalics, a lawyer practising in Nagyatád.

The facts of the case, as submitted by the applicants, may be summarised as follows.

The applicants' previous application (no. 70563/01) was declared inadmissible for non-exhaustion of domestic remedies, pursuant to Article 35 §§ 1 and 4 of the Convention, on 19 November 2002. After having pursued a petition for review before the Supreme Court, the applicants renew their complaints.

On 13 February 1998 the second applicant and 19 other individuals founded the applicant trade union ("the trade union").

On 20 February 1998 Mr Csánics requested the registration of the trade union. He submitted the articles of association, a list of the officers and other relevant documents.

On 27 February 1998 the Pest County Regional Court ordered the applicants to amend the articles of association and to submit further information. On 21 April 1998 the trade union modified its articles of association and submitted the new version to the Regional Court.

In the ensuing "non-contentious" (*nemperes*) proceedings, on 24 April 1998 the Regional Court held deliberations *in camera* and decided to refuse to register the trade union, since the applicants had failed to submit all the information required and therefore their request had not met the legal requirements. The Regional Court relied on the documents submitted by the applicants.

On the applicants' appeal – which did not contain any argument concerning the Regional Court's *in camera* deliberations – the Supreme Court, acting as a second-instance court, upheld the first-instance decision on 24 May 2000.

The applicants lodged a petition for review with the Supreme Court.

On 14 December 2000 the Supreme Court ordered the applicants to amend the petition.

On 30 January 2001 the review bench of the Supreme Court upheld the second-instance decision.

This decision was served on the applicants, upon their request, on 9 February 2004.

COMPLAINTS

1. The applicants complain that the proceedings lasted an unreasonably long time, in breach of Article 6 § 1 of the Convention.

2. Relying on Articles 6, 11 and 13 of the Convention, the applicants complain about the outcome and unfairness of the proceedings, in particular that the domestic courts decided the case *in camera*.

3. Relying on Article 1 of Protocol No. 1 to the Convention, the applicants complain that their property rights were violated in that they were

being deprived of the membership fees of possible members due to the refusal of registration.

THE LAW

1. The applicants complain about the length of the proceedings under Article 6 § 1 of the Convention which, in its relevant part, provides as follows:

> "In the determination of his civil rights and obligations ..., everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal..."

The Court considers that it cannot, on the basis of the case file, determine the admissibility of this complaint and that it is therefore necessary, in accordance with Rule 54 § 2 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

2. Under Articles 6, 11 and 13 of the Convention, the applicants also complain about the outcome and the unfairness of the proceedings, in particular about the domestic courts' deliberations held *in camera*.

As to the *in camera* nature of the proceedings, the Court observes that the registration of a trade union is a non-contentious procedure, in which, since the decision is based only on the documents submitted, no hearing appears to be necessary. In any event, it observes that the applicants did not complain about this issue before the domestic courts. Furthermore, the Court observes that there is no indication in the case file that the domestic courts lacked impartiality or that the proceedings were otherwise unfair or arbitrary. The domestic courts refused to register the trade union solely because, despite proper warning, it had failed to produce relevant information as required by the domestic law. In these circumstances, the applicants cannot complain about the refusal of their request for registration.

It follows that this complaint is manifestly ill-founded within the provision of the Convention under Article 35 § 3 and must be rejected pursuant to Article 35 § 4 of the Convention.

3. Lastly, the applicants complain that their property rights were violated in that they were deprived of the membership fee of potential, future members because of the refusal of registration.

The Court notes that the Convention or its Protocols do not guarantee any right to acquire property. This complaint is therefore incompatible *ratione materiae* with the provisions of the Convention within the meaning of Article 35 § 3 and must be rejected pursuant to Article 35 § 4 of the Convention.

For these reasons, the Court unanimously

Decides to adjourn the examination of the applicants' complaint concerning the length of the proceedings;

Declares the remainder of the application inadmissible.

S. DOLLÉ
Registrar

F. TULKENS
President